

		Issuance of Writ of Attachment as to Defendant Mobix Labs, Inc. is GRANTED. The court finds that California law governs these applications and that even if the motion to compel arbitration is granted, the court may still grant provisional remedies. (See <i>World Wide Imports, Inc. v. Bartel</i> (1983) 145 Cal.App.3d 1006, 1012 [“It is well-established that while the courts generally enforce the substantive rights created by the laws of other jurisdictions, the procedural matters are governed by the law of the forum.”]; Code Civ. Proc., § 1281.8, subd. (b).) In addition, there is no dispute that the parties entered into the Merger Agreement, which provides for a set amount of cash consideration, and that \$522,500.01 in cash consideration remains unpaid. The claim is one upon which an attachment may be issued in a readily ascertainable amount. Plaintiffs have established the probability of prevailing on their claim in the amount of \$522,500.01 against Defendant Mobix, but not Defendant EMI because Defendant EMI was not obligated to pay the cash consideration under the Merger Agreement. Plaintiffs shall give notice of this ruling.
4	Flannigan vs. Dolder 30-2024-01450681	<u>Motion for Leave to Amend</u> Plaintiff Terence Flannigan’s Motion to Amend the Complaint is DENIED without prejudice. <u>Pending Motion</u> Plaintiff Terence Flannigan moves for leave to amend the Complaint. <u>Standard for Leave to Amend (Upon Motion of a Party)</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a

		mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to
--	--	---

	a wholly distinct and different legal obligation against the defendant." (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes "delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) However, pursuant California Rules of Court rule 3.1324, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) In addition, California Rules of Court rule 3.132 requires that a separate declaration accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).) In this case, Plaintiff has not complied with the requirements of Rule 3.132. For example, Plaintiff did not file or submit a copy of the proposed amended complaint, did not state what allegations are proposed to be deleted or added to the original Complaint, and did not file a declaration identifying the effect of the amendment or the other information required. Without these documents, the court is unable whether and which facts or legal theories are being changed, and what prejudice, if any, the defendant(s) will face as a result of the amendment.
--	---

		Therefore, the court will deny the motion without prejudice to the Plaintiff refiling this motion with the proper submissions. The court clerk shall give notice of this ruling.
5	Ferron vs. Lucidi Construction, Inc. 30-2022-01268483	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Modify the Appellate Record</u> Defendant Hall's Decking Coating, Inc.'s Motion to Modify Designation of Record Filed By Plaintiff is DENIED. <u>Pending Motion</u> Defendant Hall's Deck Coating, Inc. (Defendant Hall's) moves the modify the designation of record filed by Plaintiff Melissa S. Ferron in connection with Plaintiff's appeal of this action. <u>Modifying the Appellate Record</u> The California Rules of Court provide that "[u]nless the superior court orders otherwise on a motion . . ., this rule governs if: (A) The appellant elects to use an appendix under this rule in the notice designating the record on appeal under rule 8.121." (Cal. Rules of Court, rule 8.124(a)(1).) On March 4, 2026, Plaintiff and Appellant Melissa S. Ferron filed a Notice Designating Record on Appeal indicating that she was choosing to use an appendix under Rule 8.124. (See ROA #1041.) Defendant Hall's has not shown good cause to override Plaintiff's election to proceed by appendix. Plaintiff's Counsel has represented that the appendix will consist of accurate copies of documents in the Superior Court file and intends to comply with his obligations to provide accurate copies. (See Decl. of Brian P. Worthington in Opp'n to Def. Hall's Mot. to Modify Designation of Record Filed by Pltf., ¶ 3.)